

Cover Letter for FOIL and Public Hearing Submission

September 13, 2026

Mayor Marc Citrin and Members of the Board of Trustees
Chief of Police
Village Clerk and Village Attorney
Village of Tuxedo Park
Tuxedo Park, New York 10987

Re: Overdue FOIL Responses, Public-Hearing Record, and Request for Direct Board Discussion

Dear Mayor Citrin, Trustees, Chief Faust, Village Clerk, and Village Attorney:

Attached are our notice concerning the overdue Freedom of Information Law responses, related requests for records and assistance, and supporting materials concerning the proposed local law and the process by which it is being considered. Please treat this email, this cover letter, and every attachment as part of the Village's legislative and public-hearing record.

The accompanying materials are:

1. Notice of Overdue FOIL Responses and Request to Preserve the Public Record;
2. Letter requesting assistance from the New York Coalition for Open Government;
3. Final Village Administrative FOIL request;
4. Final Police Records FOIL request;
5. The Village Clerk's August 6, 2026, acknowledgment;
6. The Mayor's August 2026 message; and
7. NYCOM Chapter 8, Local-Law Procedure.

Please distribute this email and every attachment electronically to the Mayor, each Trustee, the Village Attorney, the Village Clerk, and Chief Faust. I also request that the Village Clerk prepare and deliver a complete, legible hard-copy set to each of those officials and retain one complete hard-copy set with the official legislative and public-hearing record. Please confirm that both the electronic and hard-copy distributions have been completed.

Because the Mayor has stated publicly that the proposal arose after a neighbor brought the online location listing for our boathouse to his attention, our property—and specifically our boathouse—has been publicly identified as the reason the Village began considering this legislation. I therefore request a reasonable opportunity for a direct question-and-answer discussion with the Board, separate from and in addition to the ordinary three- or five-minute public-comment period.

The underlying activity was one fashion photoshoot conducted on our boathouse dock. It did not involve an overnight rental, lodging, residential occupancy, surrender of possession, or a reported disturbance involving noise, traffic, parking, safety, or any other measurable external effect.

The draft's unintended consequences may extend far beyond our property to boathouse owners on Tuxedo Lake, Wee Wah Lake, and Pond No. 3; every waterfront property owner with a dock, whether a boathouse is present; residents who create compensated or promotional content, including social-media influencers; and institutional property owners. Depending on its final wording, the same restriction could also reach uses of the Tuxedo Club's boathouse and docks, demonstrating why the Board should evaluate the law's full reach rather than treat it as a measure confined to overnight boathouse rentals or to our property.

A meaningful discussion is necessary so that I can answer the Board's questions, correct any factual misunderstandings, understand the asserted public-welfare concern, and respond to any proposed standards before the Board acts. If the Board declines this request, please state that decision and the reason for it on record and provide a reasonable alternative procedure for written questions and answers before any vote.

I have heard an unverified report that an individual may be organizing or promoting a letter-writing effort in support of the proposed law. I am not asserting that such a campaign has occurred. The requested communications may help establish whether any letters were submitted independently, whether they were solicited or coordinated, and whether the writers received the actual proposed language rather than a narrower description focused on overnight boathouse rentals.

Please preserve all records concerning the complaint, the online listing, the proposed law, any support-letter effort, communications among Village officials and third parties, and how our FOIL requests were handled. Nothing in this submission waives any right, objection, claim, remedy, or request for records.

Please confirm in writing:

1. receipt of this email and all attachments;
2. electronic distribution to every listed recipient;
3. hard-copy distribution to every listed recipient;
4. retention of a complete hard-copy set in the official record;
5. the status of each outstanding FOIL request;
6. the date by which the Village expects to produce responsive records;
7. whether any portion of either request has been denied;
8. the identity and contact information of the records access appeals officer;
9. whether the complete proposed local law text has been published;
10. whether the Board will provide the requested question-and-answer discussion or an alternative written procedure; and
11. that the submission will be included in the legislative and public-hearing record.

Thank you for your prompt attention. No substantive response is requested by return email beyond the confirmations and scheduling information identified above.

Respectfully,

David McFadden

Robin McFadden
28 Pepperidge
Tuxedo Park, New York 10987
mac4tux@gmail.com
(917) 576-2484